

23TRCV04009 23TRCV04009

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Case Number: 23TRCV04009 Hearing Date: July 9, 2026 Dept: B

Superior

Court of California

County

of Los Angeles

Southwest

District

Torrance

Dept. B

MAHIN

GOLCHIN,

Plaintiff,

Case No.:

23TRCV04009

vs.

[Tentative]

RULING

LAX

PHYSICAL MEDICINE, et al.

Defendants.

Hearing

Date: July 9,
2026

Moving Parties: Defendant DJO, LLC

Responding

Party: Plaintiff Mahin Golchin

(1)

Demurrer to FAC

(2)

Motion to Strike Portions of FAC

The Court considered the moving and opposition
papers.

RULING

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

The motion to strike is GRANTED WITHOUT LEAVE TO AMEND.

BACKGROUND

On December 6,
2023, plaintiff Mahin Golchin filed a complaint against LAX Physical Medicine,
LAX Physical Therapy, and Matthew Araghi for general negligence; and against
DJO Global, Inc. for product liability.

On January 26, 2024,
plaintiff filed an amendment designating Doe 1 as Matthew Szkalak.

On March 14, 2024, the Court sustained defendants
LAX Physical Medicine and Matthew Araghi's demurrer with leave to amend based
on uncertainty because there were no allegations against LAX Physical Medicine.

On March 14, 2024, plaintiff filed a FAC.

On April 30, 2024, the Court overruled LAX Physical Medicine and Araghi's demurrer to the first cause of action in the FAC.

On December 30, 2025, the Court granted motion to continue trial, from March 16, 2026 to May 4, 2026.

On February 2, 2026, plaintiff filed an amendment designating DJO, LLC as Doe 1.

On March 10, 2026, the Court denied defendant DJO Global Inc.'s motion for summary judgment.

On April 23, 2026, the Court denied DJO Global's motion for relief from untimely expert witness designation.

On April 24, 2026, the Court granted plaintiff's oral request to dismiss DJO, LLC. The Court continued the trial to June 1, 2026. Defendants Szkalak and LAX Physical Therapy indicated that they reached a settlement.

On April 30, 2026, the Court granted plaintiff's oral request to dismiss DJO Global, Inc. The Court denied DJO Global's motion for terminating and monetary sanctions.

On May 6, 2026, based on the agreement of the existing parties, the Court vacated the trial date.

On May 8, 2026, plaintiff filed an amendment stating that the true name for DJO Global Inc. is DJO LLC.

On May 14, 2026, DJO Global, Inc. filed a memorandum of costs for \$77,641.80.

On June 1, 2026, plaintiff filed a request for dismissal as to defendants LAX Physical Therapy and Matthew Szkalak.

LEGAL

AUTHORITY

Demurrer

When

considering demurrers, courts read the allegations liberally and in context. *Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal. App. 4th 1216, 1228. "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." *SKF Farms v. Superior Court* (1984) 153 Cal. App. 3d 902, 905. "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." *Hahn v. Mirda* (2007) 147 Cal. App. 4th 740, 747. Sufficient facts are the essential facts of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." *Gressley v. Williams* (1961) 193 Cal. App. 2d 636, 643-44.

Strike

"The

court may, upon a motion . . . , or at any time in its discretion, and upon terms it deems proper: (a) Strike any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." CCP §436(b).

CCP §431.10 states:

"(a) A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense.

(b) An

immaterial allegation in a pleading is any of the following: (1) An allegation that is not essential to the statement of a claim or defense. (2) An allegation that is neither pertinent to nor supported by an otherwise

sufficient claim or defense. (3) A

demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

(c) An

‘immaterial allegation’ means ‘irrelevant matter’ as that term is used in Section 436.”

The

grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP §437.

CCP

§474 and relation back

Under CCP

§474, “When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint, or the affidavit if the action is commenced by affidavit, and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly” Where

a complaint is amended after the statute of limitations has run to identify a fictitiously-named defendant, the amended complaint will “relate back” to and be deemed filed as of the date of the original complaint, if: (1) the original complaint stated a valid cause of action against the now-identified Doe defendant; (2) plaintiff was “genuinely ignorant” of the defendant’s identity; and (3) the amended complaint is based on the same general set of facts as the original. *Austin v. Massachusetts*

Bonding & Ins. Co. (1961) 56 Cal.2d 596, 600-601.

Amendment

“As a

general rule, ‘an amended complaint that adds a new defendant does not relate back to the date of filing the original complaint and the statute of limitations is applied as of the date the amended complaint is filed, not the date the original complaint is filed.’ But

where an amendment does not add a ‘new’ defendant, but simply corrects a misnomer by which an ‘old’ defendant was sued, case law recognizes an exception to the general rule of no relation back.”

Hawkins v. Pacific Coast Bldg. Products, Inc. (2004) 124 Cal.

App. 4th 1497, 1503 (citations omitted). "Whether a plaintiff may amend the complaint to change a party's description or characterization 'after the statute of limitations has run depends on whether the misdescription or mischaracterization is merely a misnomer or defect in the description or characterization, or whether it is a substitution or entire change of parties. In the former case, an amendment will be allowed; in the latter, it will not be allowed.'" Id. at 1504 (citations omitted).

DISCUSSION

Demurrer

Defendant

DJO, LLC demurs to the entire FAC on the ground that it is barred by the applicable statute of limitations under CCP §335.1.

The

Court sets forth the following chronology:

On

December 6, 2023, plaintiff filed a complaint against DJO Global, Inc. for products liability.

On

January 19, 2024, "Defendant DJO, LLC (erroneously named and sued as DJO Global, Inc.) ('Defendant') for itself only and on behalf of no other entity" filed an answer to the complaint.

On

March 14, 2024, plaintiff filed an FAC against "DJO Global, Inc.," which is listed in the caption and as defendant at paras. 1, and 5.b. Under the second cause of action for products liability, it states against "defendant DJO LLC only," and alleges that DJO Global, Inc., owner and parent of the Chatanooga M2 manufacturer serial number 22565 "subject heating pad," and Does 1 through 50 were engaged in the business of manufacturing, designing, assembling, compounding, testing, inspecting, packaging, labeling, fabricating, constructing, analyzing, distributing, servicing, merchandising, recommending, advertising, promoting, marketing, and selling the subject electric heating pad and its component parts and constituents, for resale to and use by chiropractors and other medical services providers including defendants LAX Physical Therapy and Matthew Araghi. Prior to the time that the subject electric

heating pad was used by plaintiff, defendants DJO Global and Does 1 through 50 made implied warranties to plaintiff and the general public that said subject electric heating pad was of merchantable quality and safe and fit for the use for which it was intended. The subject heating pad is defectively designed, manufactured, in that it heated to such a high temperature that it caused significant burns to plaintiff's skin when it was used in a reasonably foreseeable manner. The subject heating pad was dangerous and failed to carry sufficient warnings. Plaintiff alleges that she suffered a burn to her leg on September 5, 2023.

On November 7, 2025, DJO Global, Inc. filed an answer to the FAC on behalf of itself and no other entity.

On December 17, 2025, DJO Global Inc. filed a motion for summary judgment.

On February 2, 2026, plaintiff filed an amendment designating "DJO, LLC" as Doe 1, but never served the operative complaint on DJO, LLC.

On April 8, 2026, defendant DJO Global, Inc. filed a motion for terminating sanctions.

On April 24, 2026, at the FSC, pursuant to an oral request made by plaintiff, DJO, LLC was dismissed without prejudice.

On April 30, 2026, at the hearing on the motion for sanctions, pursuant to an oral request made by plaintiff, DJO Global, Inc. was dismissed without prejudice.

On May 4, 2026, the Court denied plaintiff's ex parte application to vacate "inadvertent and mistaken dismissal" of DJO, LLC.

On May 8, 2026, plaintiff filed an amendment to complaint, replacing the incorrect

name of DJO Global, Inc. with the true name of DJO, LLC.

Defendant

DJO, LLC argues that the May 8, 2026 amendment is time barred. As stated above, defendant DJO, LLC appeared in this matter on January 19, 2024 when it filed an answer. Defendant argues that with the knowledge that DJO, LLC had appeared as a proper defendant, plaintiff nonetheless filed her FAC on March 14, 2024 neither naming DJO, LLC as a defendant nor serving it, and thus DJO, LLC was dismissed from the FAC.

Defendant

further argues that the cause of action for products liability accrued on September 5, 2023 and is subject to a two-year statute of limitations under CCP §335.1. Defendant further contends that

the amendment is time barred because DJO Global, Inc. and DJO, LLC were previously dismissed after the statute of limitations had run. Defendant asserts that plaintiff's attempt to bring in DJO, LLC at this juncture is time barred because the applicable statute of limitations had run before plaintiff was in a position to renew the dismissed cause of action whether as DJO, LLC erroneously named as DJO Global, Inc., as DJO Global, Inc., or as DJO, LLC.

Also, defendant argues, DJO Global, Inc. was dismissed from the FAC on April 30, 2026 and is no longer an active defendant whose name can be corrected. Moreover, DJO, LLC cannot be brought in under the pretext they are a "Doe" defendant so as to avoid the statute of limitations under CCP §474 because DJO, LLC was not unknown. Further, defendant asserts, both former defendants are separate legal entities as evidenced by the suffix in their names. Defendant also argues that plaintiff unreasonably delayed in filing an amendment and that defendant will be severely prejudiced.

In

opposition, plaintiff argues that DJO, LLC is equitably and judicially estopped from asserting that it was never properly before the Court and that it cannot simultaneously participate in litigation as a defendant—producing witnesses, conducting an inspection, and exchanging discovery—and then disclaim defendant status. Plaintiff asserts that DJO (in the form of DJO Global, Inc.), as the manufacturer named in the FAC, appeared in and litigated this action and cannot now assert a statute of limitations defense. Plaintiff states that the second cause of action in the FAC was explicitly "against defendant DJO LLC only" even as the caption of the FAC used the "Global, Inc." moniker. Plaintiff notes that DJO's own PMK presented specifically as the authorized representative of the company to testify on

categories, including the design and temperature settings of the M-2, and identified his employer as "DJO, LLC."

Plaintiff argues that the amendment properly corrects a misnomer, and is not a substitution of parties, by correcting the legal suffix attached to the one entity plaintiff always intended to sue.

Also, plaintiff argues, DJO's extensive participation in discovery precludes a finding of prejudice.

The

Court rules as follows: The Court finds

that the amendment filed on May 8, 2026 (as well as the February 2, 2026 amendment) is barred by the two-year statute of limitations and does not relate back to the filing of the complaint or the FAC under CCP §474. Plaintiff was not genuinely ignorant of the identity of DJO, LLC; plaintiff was aware of DJO, LLC being the proper entity by at least January 19, 2024. Although DJO, LLC became a party to the action when it filed an answer, it was effectively dismissed without prejudice when plaintiff filed a first amended complaint and did not name DJO, LLC as a defendant. See *Troche v. Daley* (1990) 217 Cal.App.3d 403, 412. While plaintiff was free to again name DJO, LLC as a defendant, she was required to do so before the statute of limitations ran in September 2025. She did not. Instead, she sought to add DJO, LLC as a defendant in February 2026 (then again requested dismissal of DJO, LLC without prejudice) and again in May 2026. Both attempts were beyond expiration of the statute of limitations. Because plaintiff was not ignorant of the true name of the proper defendant, DJO, LLC need not show prejudice from the delay in adding it as a party. See *Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 177 ("[I]f the identity ignorance requirement of section 474 is not met, a new defendant may not be added after the statute of limitations has expired even if the new defendant cannot establish prejudice resulting from the delay.").

Moreover,

the May 8, 2026 amendment is not allowed under CCP §473 as it is a substitution of parties rather than a misnomer correction.

DJO, LLC and DJO Global, Inc. are two different entities. DJO, LLC is not the same as DJO Global, Inc. where plaintiff mischaracterized "Inc." for "LLC." As such, the amendment is not allowed and does not relate back. Even if viewed as a misnomer, plaintiff seeks to substitute DJO, LLC in place of a dismissed party. When the Court dismissed DJO Global, Inc. at plaintiff's request, it was as if DJO Global, Inc. was no

longer named in the FAC. There is thus
no named DJO entity to correct in the FAC.
DJO, LLC cannot take the place of a party that no longer exists in the
action.

Finally, plaintiff argues that DJO Global,
Inc. submitted to the Court's jurisdiction when it filed an answer to the FAC
on its own behalf and should be estopped from asserting that it was never
properly before the Court. First, DJO
Global, Inc. is not asserting anything at this point. The demurrer and motion to strike were filed
by DJO, LLC. Second, it is undisputed
that, at different points in time, DJO, LLC and DJO Global, Inc., were properly
before this Court in that they had submitted to the Court's jurisdiction by
filing answers. Plaintiff, however,
dismissed DJO, LLC when she filed her FAC and did not name DJO, LLC as a
defendant. Plaintiff twice sought to
correct this oversight, but only after the statute of limitations had passed.

The
demurrer is thus SUSTAINED WITHOUT LEAVE TO AMEND.

Motion to Strike

Defendant
requests that the Court strike the FAC as to DJO, LLC as moot because
plaintiff's amendment designating DJO Global, Inc., a dismissed defendant in
the underlying action, to be the incorrect name of defendant DJO, LLC is
irrelevant as both parties were previously dismissed and the statute of
limitations has run. In the alternative,
DJO, LLC requests that the Court strike the "false allegations" in the
amendment that DJO Global, Inc. was a misnomer for DJO, LLC.

Defendant argues that plaintiff has known since at least
January 19, 2024 that DJO, LLC and DJO Global, Inc. are separate legal
entities, when DJO, LLC answered as DJO, LLC (erroneously named and sued as
DJO, Global, Inc.).

In opposition, plaintiff argues that the motion to strike
is an improper vehicle for defendant's statute of limitations argument. Further, plaintiff contends, "DJO, LLC" was
the intended and proper defendant although plaintiff using "DJO Global, Inc."

as the manufacturer was not "false."

Plaintiff also asserts that the prior dismissals were without prejudice.

See the Court's ruling above under demurrer. The Court finds that the May 8, 2026 amendment is improper and thus it is STRICKEN.

The motion is GRANTED WITHOUT LEAVE TO AMEND.

ORDER

The

Court rules in the alternative.

The

demurrer to the FAC is SUSTAINED WITHOUT LEAVE TO AMEND.

The motion to strike is GRANTED WITHOUT LEAVE TO AMEND. The May 8, 2026 amendment is STRICKEN.

Moving

defendant is ordered to give notice of ruling.